

SENATE No. 3241

Senate, July 30, 2026 -- Text of the further amendment (Senator Cyr) to the Senate Bill regarding free expression (Senate, No. 2726)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 by striking out all after the enacting clause and inserting in place thereof a new text:-

2 "SECTION 1. Chapter 71 of the General Laws is hereby amended by inserting after
3 section 82 the following 3 sections:-

4 Section 82A. (a) For the purposes of this section and sections 82B and 82C, inclusive, the
5 following words shall have the following meanings unless the context clearly requires otherwise:

6 "School library", a library within a school department of a city or town, a regional school,
7 an independent vocational school or a vocational school or agricultural school operated by a
8 county.

9 "School library materials", textbooks, instructional materials, curricula, books or other
10 library resources.

11 "School library teacher", the school library teacher in the district licensed by the
12 department, or in the absence of such a school library teacher, the school official responsible for
13 the selection of school library materials and the use of school library materials and facilities.

(b) A determination that materials are appropriate for inclusion in a school library by a school library teacher shall require that the materials: (i) are age appropriate; (ii) serve an educational purpose; and (iii) be based on the teacher's or employee's professional training and not on personal, political or doctrinal views.

(c) No challenged material selected for inclusion in a school library collection pursuant to subsection (b) shall be removed except upon a determination and vote by the school committee or board of trustees of a charter school following: (i) notice; (ii) a public hearing; and (iii) a finding by a review committee of school personnel appointed by: (A) the school superintendent, in consultation with the school committee; or (B) in the case of a charter school, the board of trustees, that the material, taken as a whole, based on clear and convincing evidence, is devoid of any educational, literary, artistic, personal or social value or is not age appropriate for any child who attends the school. A school committee shall only consider a challenge to material in a school library from an individual who is a staff member employed by a school overseen by the school committee, a parent or guardian of a student currently enrolled in such a school or a student currently enrolled in such a school.

(d) A decision of the school committee or the board of trustees of a charter school to remove materials from a school library may be challenged by a student, parent or guardian pursuant to section 5 of chapter 249.

(e) Nothing in this section shall preclude school employees responsible for school library content from deciding to remove materials that have become outdated or to accommodate new materials; provided, however, that the decision to remove materials shall not be made based on personal, political or doctrinal views.

Section 82B. (a) Each school district, charter school and local education agency shall establish a written policy for its school library for: (i) the selection of school library materials, including textbooks, instructional materials, books or other library resources; (ii) the use of library materials and library facilities; and (iii) responding to challenges requesting to remove or restrict library materials. The written policy shall: (i) be in accordance with standards adopted by the American Library Association; (ii) be posted on the school district, charter school or local education agency's website; and (iii) provide that if material selected by the school library teacher is the subject of a challenge requesting to remove or restrict its use, such material shall remain on the shelves of the school library pending a vote of the school committee or the board of trustees of a charter school made during the process for responding to such challenge in accordance with subsection (b) of section 82A. The board of library commissioners for the commonwealth through its affiliate, the Massachusetts Library System, shall: (i) make resources available to help school committees or other administrative authority of a school library create or modify written policies for the selection of library materials and the use of materials and facilities in accordance with the standards adopted by the American Library Association; and (ii) make sample policies available on its website.

(b) Annually, school districts, charter schools and local education agencies shall submit a report to the department, which shall include information on all complaints and challenges requesting to remove or restrict educational materials from its schools during the previous school year. The report shall include, for each complaint, challenge or attempt to remove or restrict school library materials, the: (i) school name and location; (ii) title and author of the school library materials; and (iii) outcomes of such complaint, challenge or attempt to remove or restrict school library materials.

Section 82C. No school employee shall lose the employee's department-issued license or professional certification or be dismissed, disciplined, placed on probation, involuntarily transferred, be otherwise subjected to an adverse employment action, fined or imprisoned for the selection of library materials when the selection is made in good faith and in accordance with the policy established pursuant to section 82B.

SECTION 2. Section 10 of chapter 78 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 8, the words “, male or female,”.

SECTION 3. Said section 10 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 13, the word “chairman” and inserting in place thereof the following word:- chair.

SECTION 4. Said section 10 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 16, the word “selectmen” and inserting in place thereof the following words:- select board.

SECTION 5. Section 14 of said chapter 78, as so appearing, is hereby amended by striking out, in line 5, the word “his” and inserting in place thereof the following words:- the member's.

SECTION 6. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 13, the word “chairman” and inserting in place thereof the following word:- chair.

SECTION 7. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 18, the word “his” and inserting in place thereof the following word:- the director’s.

SECTION 8. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 21, the word “his” and inserting in place thereof the following words:- the deputy director’s.

SECTION 9. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 19, the word “him” and inserting in place thereof the following words:- the director.

SECTION 10. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 22, the word “him” and inserting in place thereof the following words:- the deputy director.

SECTION 11. Section 15 of said chapter 78, as so appearing, is hereby amended by adding the following paragraph:-

The board of library commissioners shall make resources available to assist the board of trustees or other administrative authority of a free municipal public library, to create or modify written policies for the: (i) selection of library material; (ii) development of library collections; (iii) use of materials and facilities; and (iv) process, in accordance with the standards adopted by the American Library Association and as required by section 19B, to respond to challenges requesting to remove or restrict the use materials from the library.

SECTION 12. Section 19B of said chapter 78 is hereby amended by striking out clause (7), as so appearing, and inserting in place thereof the following 2 clauses:-

(7) include in their annual report the total number of nonresident loans and nonresident circulation as a percentage of the library's total circulation, as certified by the librarian and subject to an audit by the state auditor; and

(8) adopt and make public a written policy for the selection and use of library materials and facilities in accordance with section 33; provided, however, that such policy shall incorporate the American Library Association's Library Bill of Rights and state that materials shall not be selected, proscribed or removed because of personal, political or doctrinal views or bias.

SECTION 13. Section 33 of said chapter 78, as so appearing, is hereby amended by inserting after the word "establish", in line 3, the following words:- and implement.

SECTION 14. Said section 33 of said chapter 78, as so appearing, is hereby further amended by inserting after the word "Association", in line 6, the following words:- including, but not limited to, its Library Bill of Rights;

SECTION 15. Said section 33 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 6, the words "be dismissed" and inserting in place thereof the following words:- lose librarian licensure or certification or be dismissed, disciplined, placed on probation, involuntarily transferred, be otherwise subjected to an adverse employment action, fined or imprisoned.

SECTION 16. Said section 33 of said chapter 78, as so appearing, is hereby further amended by adding the following 2 sentences:- The board of trustees of a free public library in any city or town, or in the absence of such board, the city or town official possessing the appointive powers of such board, shall only consider a challenge to the selection or use of library materials from an individual who is a resident of the city or town. A decision to remove materials from a free municipal public library may only be challenged by an individual residing in the applicable city or town or by the author or creator of the material that is the subject of such decision if such material was selected for inclusion in a free public library prior to a decision to remove it under this section through a petition for a writ of mandamus in the supreme judicial court or superior court.

SECTION 17. Said chapter 78 is hereby further amended by adding the following section:-

Section 35. Annually, not later than October 1, the board of library commissioners shall submit to the clerks of the house of representatives and senate, the joint committee on tourism, arts and cultural development, the joint committee on education, the joint committee on municipalities and regional government and the house and senate committees on ways and means a report on challenges requesting to remove or restrict books or other educational materials in the commonwealth which shall include: (i) information on the library that is the subject of the challenge, including the name and location of the library; (ii) the title and author of the challenged material; (iii) the outcome of the challenge. Said report may include recommendations to support programming that expands access to library materials."